

25STCV28313 25STCV28313

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 25STCV28313 Hearing Date: July 22, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Ting Moore

, et al.;

Plaintiffs,

vs.

Wan Zhu “Kathryn” Li

, et al.,

Defendants.

Case No.:

25STCV28313

Hearing Date:

July 22, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

DEMURRER
TO FIRST AMENDED COMPLAINT

MOVING PARTY: Defendants Wan Zhu “Kathryn” Li, Hong
Li, and Rena International Corporation.

RESPONDING
PARTY: No response

Demurrer to First
Amended Complaint.

The court considered the moving
papers filed in connection with this motion. No opposition or reply was filed. The
court has also considered the Motion for Leave to File Second Amended Complaint
filed by plaintiffs Ting Moore, Howard Moore, Fanzi Meng, Peter Zhen Zhang,
Lianying Mao, Sufen Zheng, and Kewen Zhang (“Plaintiffs”) on April 21, 2026.

DISCUSSION

Defendants Wan
Zhu “Kathryn” Li, Hong Li, and Rena International Corporation (“Defendants”)
demur to the First Amended Complaint in its entirety. Defendants state that
Plaintiffs, through their counsel, agreed to file a Second Amended Complaint during
a teleconference with Defendants’ counsel on March 16, 2026. (Shioda Decl. ¶
8.) No amendment was filed before this demurrer was brought on April 8, 2026,
and Defendants cite Plaintiffs’ failure to amend as a reason for the demurrer.
(Demurrer p. 4:17-19.) However, on April 21, 2026, Plaintiffs filed a “Motion
for Leave to File a Second Amended Complaint” which seeks to amend the
pleadings “to address issues raised in Defendants’ demurrer to the First
Amended Complaint.” (Motion for Leave p. 2:8-9.) Plaintiffs therefore concede
the objections to the First Amended Complaint, and the court therefore sustains

the demurrer. (Code Civ. Proc. § 430.10 subd. (e).)

However, based on

the filing of the Motion for Leave, the court also finds that Plaintiffs have met their burden “to articulate how [they] could amend [their] pleading to render it sufficient.” (Palm Springs Villas II Homeowners Assn., Inc. v. Parth, (2016) 248 Cal.App.4th 268, 290.) The court therefore grants Plaintiffs leave to amend their complaint.

ORDER

The court

SUSTAINS defendants Wan Zhu “Kathryn” Li, Hong Li, and Rena International Corporation’s demurrer to plaintiffs Ting Moore, Howard Moore, Fanzi Meng, Peter Zhen Zhang, Lianying Mao, Sufen Zheng, and Kewen Zhang’s First Amended Complaint.

The court grants

the plaintiffs 20 days leave to file a Second Amended Complaint that cures the defects in the First Amended Complaint identified by the defendants’ demurrer.

The plaintiffs’

Motion for Leave to File Second Amended Complaint scheduled to be heard November 20, 2026, at 10:00 A.M., is advanced to this date and vacated because it is moot.

The court orders defendants

Wan Zhu “Kathryn” Li, Hong Li, and Rena International Corporation to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 22, 2026

Robert B. Broadbelt III

Judge of the Superior Court